7/8/2025 - Public Statement Hearing - 25-E-0072, 25-G-0073

STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 25-E-0072 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service.

CASE 25-G-0073 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service.

PUBLIC STATEMENT HEARING

DATE: JULY 8, 2025

LOCATION: Borough of Manhattan Community College
199 Chambers Street
New York, New York 10007

BEFORE: ALJ TARA KERSEY
ALJ DAKIN LECAKES

Reported by Ildiko Nyari

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(The hearing commenced at 1:01 p.m.)

(On the record)

A.L.J. KERSEY: You all set? Okay. I call cases 25-E-0072, Proceeding on Motion of the Commission as to the rates, charges, rules and regulations of Consolidated Edison Company of New York, Inc. for electric service, and the Proceeding on Motion of the Commission as to the rates, charges, rules and regulations of Consolidated Edison Company of New York, Inc. for gas service.

My name is Tara Kersey, and with me is Chief Administrative Law Judge Dakin Lecakes. Also with us is the chair of the public service commission, Rory Christian. I, along with Judges Costello and Judge Planty, have been assigned for the department of public service to these rate cases. Chief Administrative Judge Lecakes is with me today to preside over this public statement hearing held on behalf of the New York State Public Service Commission regarding the proposed changes in the electric and gas delivery rates and practices of the Consolidated Edison Company of New York.

I will begin by providing some

background on these proceedings. Consolidated Edison Company filed amendments to its electric and gas tariff schedules on January 31st, 2025, proposing to increase its annual electric and gas delivery revenues for the twelve months period ending December 31st, 2026. As of its April 10th, 2025, updated testimony, Con Edison proposes to increase its electric delivery revenues by approximately $1.6 billion, an 11.3 percent increase in total revenues or 17.9 percent increase in base delivery revenues. And its natural gas delivery revenues by approximately $349 million, a 10.5 increase in total revenues or 14.9 percent increase in base delivery revenues. The actual bill impacts of these proposed changes on any particular customer class will vary based upon revenue allocation and rate design.

On or about May 30th, 2025, direct testimony and exhibits responding to Con Edison's rate requests were filed by DPS staff, City of New York, assembly member Chris Burdick, assembly member MaryJane Shimsky, assembly member Dana Levenberg, Amtrak, Alliance for a Green Economy, Consumer Power Advocates, the Environmental Defense Fund, Electrify

America LLC, Natural Resources Defense Counsel, the Metropolitan Transportation Authority, New York Power Authority, Public Utility Law Project of New York, state senator Robert Jackson, Westchester Municipal Consortium, the County of Westchester, and the Utility Intervention Unit. UIU provided corrected testimony in June, as did the Environmental Defense Fund.

On or about June 24th, 2025, rebuttal testimony was filed by Con Edison, DPS staff, NYPA, MTA, City of New York, assembly members Burdick, NYECC, UIU, and certain named individuals. By a letter dated June 24th, 2025, Con Edison filed a notice of impending settlement negotiations. If settlement negotiations are successful, the parties to the settlement would file a joint proposal to the commission. There would then be further briefing, public comment, and evidentiary hearings before the case is submitted to the commission for decision. The commission can adopt the joint proposal, modify the joint proposal, or reject the joint proposal. If settlement negotiations are not successful, the administrative law judges would issue a new

procedural schedule for an evidentiary hearing and post-hearing briefs. The cases then may be presented to the commission for decision or the administrative law judges may issue a recommended decision. If we issue a recommended decision, the parties would have an opportunity to brief their positions on those recommendations, and then the cases would be decided by the commission.

Under New York State law, the Public Service Commission must consider the utilities proposals and may adopt or reject them in whole or in part or modify it. At this time, the Commission must decide these cases by December 30th, 2025. However, that date may be subject to further extensions. Regardless of how these cases proceed, the Public Service Commission will make the final decision regarding the company's terms and conditions regarding electric and gas service.

This hearing is being held so you can provide your comments on Con Edison's proposals for the commission's consideration. In making its decision, the commission will consider the evidentiary record in these cases and the comments

made at this hearing. The Public Service Commission has seven members, the chairperson, Rory Christian, and six commissioners: James Alesi, David Valesky, John Maggiore, Uchenna Bright, Denise Sheehan, and Radina Valova. At this public statement hearing, we are joined by Chair Christian. Chair, would you like to address the participants?

MR. CHRISTIAN: Thank you. One, I want to thank everyone for coming today, taking time out of your busy schedules to be a part of this process. To be clear, and just amplify what's been said earlier, rate cases are opportunities to identify what investments are needed to ensure reliability, safety, and continuing operation of our energy systems. We need these investments to harden our systems, and this is something made clear through the events of Hurricane Sandy and other extreme weather. These investments are needed to decarbonize our system, something possible only through the deployment of new technologies, new practices, and improved IT infrastructure, and these investments, which are ultimately authorized by the commission, are designed to balance a variety of priorities.

Everything from access at the individual consumer level, safety, reliability, affordability, and among others.

Now, absent this process, we run the risk of our energy system becoming increasingly out of date -- less reliable, less resilient, less safe, and ultimately incapable of mitigating the climate change evident before us. So today's hearing, this is a public forum, and the information discussed today will ultimately become part of the record in this case. It is from this record, which includes thousands of pages of filed comments from the utility and a variety of stakeholders mentioned earlier. It is from this record that the commission takes action based on information provided. So again, if you wish to speak, you'll have ample opportunity to do so, and I simply ask that everybody be respectful and allow everyone to finish what they say.

But again, thank you for coming today, and I look forward to the discussion.

A.L.J. KERSEY: Thank you, Chair. As the Chair mentioned, the purpose of today's hearing is to provide you with an opportunity to share your

opinions on the company's rate filings with the commission. The topic of today's event is limited to these particular rate cases. This is not the proper forum to raise issues that are unrelated to the company's rate case filings. Statements you make will become part of the record. The court reporter will prepare a transcript of the hearing, which will be included in the record of these proceedings, so that your comments can be considered by all members of the commission. When it is ready, the transcript will also be available for public view on the website for the Department of Public Service.

Today's hearing is not an question-and-answer forum. We are here only to listen to your comments. However, if you do have questions or concerns related to your service with Con Edison, they have materials that are available outside by the turnstile where you came in, and they provided a dedicated phone number and email for customers to get assistance related to specific customer service and billing inquiries. Additionally, where you came in, we have members of our Office of Consumer Services, the Office of

Consumer Services for the Department of Public Service, and they can assist you with questions or complaints regarding your utility service.

If you do not wish to speak at today's hearing, but you would like your views included in the record, there are other ways to comment. You can submit comments on the department's website, by regular mail, or by telephone. Information regarding these alternative methods is available from the department's Office of Consumer Services staff, who are seated at the table near the turnstile where you came in.

Regardless of how comments are submitted, they will be given equal consideration by the commission. According to the secretary's notice for these events, comments must be received by November 21st to ensure the commission is able to consider them prior to the final decision. If you'd like to make a statement, and you have not done so all ready, please fill out a registration card. The cards are available at the table with our outreach staff. I will call speakers up one by one using the cards in the order in which they were received.

Please speak slowly and clearly so that the court reporter can accurately capture your statements for the record. Please be respectful when delivering your comments. This is an official government proceeding and an appropriate level of decorum is expected of everyone. Shouting, swearing, and interrupting speakers, and other disruptions to the hearing are not only discourteous, but also ultimately impede our ability to make sure we hear from everyone who has taken time to be here today. Finally, we ask that you silence your cell phones.

Our first speaker is Rick Stoles.

MR. STOLES: Good afternoon -- whoa.

A.L.J. KERSEY: I know.

MR. STOLES: My name is Richard, and I got a minute and a half.

A.L.J. KERSEY: Go ahead.

MR. STOLES: Con Ed is the only utility game in town. It's a monopoly and we have no choice in the matter. We either use them or we don't have power, but that doesn't make electricity and gas a privilege. They are a necessity in our city. Last year some of our bills went up 300 percent. 300

percent. Now, I know gas and oil is a volatile market, but it has never risen 300 percent in one month. And I remember calling my friends, thinking it couldn't just be me, but sure enough, we were all hit in the head by the massive increases, just like the year before and the year before that.

Now, I understand that Con Ed buys the energy wholesale, without making a profit or a loss, and the root of the problem is that we rely on fossil fuels, which hopefully will change by 2040, thanks to the build public renewables act. But Con Ed does make a massive profit on their delivery charges. It makes sense that some of their profits go towards maintaining this infrastructure that the chair was talking about and for prepping for 2040. I get that. But last year, Con Ed made $15 billion -- 15 billion. If they asked you for a 10.1 return on equity, and you proposed a 9.3 return instead -- is that right? They agree?

Well, they asked. Okay. I'll keep going.

In any case, 9.3 return on profits still sounds crazy to me and just about everyone I

know who lives in the city and pays these monthly bills. There are a great many for-profit sectors and industries in New York who would gladly settle for a five percent profit margin. 9.3. percent is too much; 10 percent is too much. There's a bill right now proposed by Senator James Skoufis that aims to cap these profits at four percent. Now, that will still leave plenty of profit for the shareholders while giving us a well-needed break, because times are hard.

I'm a shareholder in Con Ed, but if this goes through, I'm sure I won't be the only one who dumps their stocks. So I'm just asking you to please don't put the Con Ed shareholders before the citizens of New York. Thank you for your time.

A.L.J. KERSEY: Thank you for your comment. Our next speaker is John King.

MR. KING: Dagnabbit.

A.L.J. KERSEY: What?

MR. KING: It's a great start.

A.L.J. KERSEY: It's okay. You can just grab this one and use that one.

MR. KING: Uh-oh, could somebody put

this back together?

A.L.J. KERSEY: Yeah. Absolutely.

MR. KING: A large drama about a theater.

A.L.J. KERSEY: That's okay. Let me take that one. Hold on.

MR. KING: Oh, we got a replacement? I heard you on the radio on the capitol -- on the capitol out there.

A.L.J. KERSEY: That wouldn't be me. But thank you.

I think that was on.

MR. KING: Are we on?

A.L.J. KERSEY: Yeah.

MR. KING: Okay.

A.L.J. KERSEY: You might want to speak and step back -- just step back.

MR. KING: Can I pull this out?

A.L.J. LECAKES: Just -- you don't need to touch it. No, --

MR. KING: All right.

A.L.J. LECAKES: Please put it back.

MR. KING: I've all ready lost --

A.L.J. LECAKES: Excuse me.

MR. KING: Hello, everybody.

A.L.J. LECAKES: Please put the microphone back in the stand. You don't need to hold it. And just speak this way.

MR. KING: Okay. I understand. Okay.

A.L.J. LECAKES: Yep. Thank you.

A.L.J. KERSEY: There you go. Thank you.

MR. KING: This is on the record now, everybody. I can't remember why there's so few people here today. Around half a million people had their electricity and gas turned off by Con Ed last year. I got my figures from Paul. I've had to keep (indiscernible) this year. And I've lived in New York since 1982. I've had a relationship with Con Edison for about 48 years. During this time, it has been basically a wonderful relationship. No problems. My first bill was for around $15.

So the rate hike has been quite a bit -- I think there was a rate hike in August of 2023. I might not really have the exact date. Obviously, another rate increase. I normally have a

bill of gas and electricity of around $50 a month. But I was surprised by a rate increase in December 2024. I had a 30-approximately dollar bill for payment immediately. Evidently, I have a level payment program, so in the past, the difference between the actual amount of electricity and gas a year and the payment was about $50. But in this case, in 2023, it appeared to be just at around $1,000. So technically, I owed Con Ed over $3,000 per 100 a year. Why don't they shut off my gas and electricity if I owed them $3,000 per 100 a year? A little bit confusing.

But I don't know -- very out of line. This is the first -- I'm sure it's a lot of artificial intelligence going on. They need to build the date centers, and there would be starting nuclear reactors for gas, recovering government accommodations provided in upstate New York. One good thing about government property. It just shut down in Dearborn too. You got to get out of that house Westchester County. You guys are living too close to nuclear energy.

So do you have a time limit?

A.L.J. KERSEY: Yes.

MR. KING: Is there a time limit?

A.L.J. KERSEY: A bit of time limit. I'll let -- go ahead.

MR. KING: How long is the time limit, again?

A.L.J. KERSEY: You've got about two minutes left.

MR. KING: How many?

A.L.J. KERSEY: Two minutes left.

MR. KING: I have three minutes left?

A.L.J. KERSEY: You have two minutes left.

MR. KING: Okay. Why don't I give my time back to the multitude waiting eagerly to testify on why this should not be. A Consolidated Edison increase. People who're retired up in here, who remembers the summer of 1977, sunset and also blackout, and part of New York and everything in blackout? I wish we could all just try and (indiscernible) it. So that was a little bit of a Con Ed -- Consolidated Edison history. So I will give it back to them.

Thank you very much for allowing me to present. I can't even understand how I got to go up today, because supposedly, there was a 10-day advanced notice to present, but luckily, that didn't happen. So thank you for that, everybody. Thanks to Paul and I would like to thank everybody in the room.

A.L.J. KERSEY: Thank you. We don't have any other preregistered speakers. Is there anyone in the room that would like to speak?

As that concludes our list of registered speakers, we're going to go off the record, but we're going to leave the hearing open until 2 o'clock today. We're going off the record. Thank you.

(Off the record)

(On the record)

A.L.J. KERSEY: Okay, we are on the record. I have not received any speaker registration cards, and prior to going on the record, I polled those present to see if anyone intended to make a statement. No one indicated a wish to make a statement.

Again, you may submit comments

regarding these proceedings by the other means I described earlier. You must do so by November 21st, 2025, for those comments to be considered. Please note that there will be another public statement hearing here at 6 p.m., and we also have other public statement hearings over the next two days. Wednesday and Thursday in Brooklyn, in White Plains, in Queens and the Bronx, and then two in Staten Island at the end of July. If you would like any further information about those, please talk to our consumer service reps at the table at where you walked in by the turnstiles.

I want to thank you for your participation today. This hearing is concluded and we are off the record.

(The hearing concluded at 2:01 p.m.)

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I, ILDIKO NYARI, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 19, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 11th day of July, 2025.

ILDIKO NYARI, Reporter